

Superior Court of the State of California
County of Orange

TENTATIVE RULINGS
DEPARTMENT C27
JUDGE BRADLEY ERDOSI

LAW AND MOTION IS HEARD ON MONDAYS AT 2:00 P.M.

Tentative Rulings: The Court endeavors to post tentative rulings on the Court's website by 10:00 a.m. on the date of the afternoon hearing. However, ongoing proceedings or other pressing matters may delay the posting of tentative rulings. Additionally, tentative rulings may not be posted in every case. Please **do not** call the department for tentative rulings if tentative rulings have not been posted. The Court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on Tentative Rulings: If all counsel intend to submit on the Court's tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5227. Please do not call the department unless **all** parties submit on the tentative ruling. If all sides submit on the Court's tentative ruling and so advise the Court, the tentative ruling will become the Court's final ruling and the prevailing party is ordered to give notice of the ruling and prepare an order for the Court's signature, if appropriate, under Cal. R. Ct. 3.1312.

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TENTATIVE RULINGS

June 08, 2026

	Case Name	Tentative
101	2025-01501393 Itria Ventures LLC vs. Azalea Systems Corp.	Motion for Summary Judgment and/or Adjudication Plaintiff Itria Ventures LLC's ("Plaintiff") motion for summary judgment is granted. Plaintiff moves for summary judgment on its third, fourth, and fifth causes of action against defendant Azalea Systems Corp., dba Handbill Printers and Velox Print ("Defendant Azalea"), and on its sixth, seventh, and eighth causes of action against defendant Gaby Azar ("Defendant Azar"). (The first and second causes of action have been dismissed. (ROA 35.)) <u>Legal Standard</u> "A party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact." (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850.) "A prima facie showing is one that is sufficient to support the position of the party in question." (<i>Id.</i> at 851.) Simply put, "[i]f a party moving for summary judgment in any action . . . would prevail at trial without submission of any issue of material fact to a trier of fact for determination, then he should prevail on summary judgment." (<i>Id.</i> at 855.) Where a plaintiff seeks summary judgment, the plaintiff's burden is to produce admissible evidence on each element of a cause of action entitling him or her to judgment. (Code Civ. Proc. § 437c, subd. (p)(1); <i>S.B.C.C., Inc. v. St. Paul Fire & Marine Ins. Co.</i> (2010) 186 Cal.App.4th 383, 388.) It is not plaintiff's initial burden to disprove affirmative defenses and cross-complaints asserted by defendant. (<i>Oldcastle Precast, Inc. v. Lumbermens Mut. Cas. Co.</i> (2009) 170 Cal.App.4th 554, 565, citing <i>Aguilar</i>, supra, 25 Cal.4th at 853 ["summary judgment law in this state no longer requires a plaintiff moving for summary judgment to disprove any defense asserted by the defendant as well as prove each element of his own cause of action"].) If the plaintiff meets this initial burden, the burden then shifts to the defendant "to show that a triable issue of one or more material facts exists as to that cause of action." (Code Civ. Proc. § 437c, subd. (p)(1).) In ruling on the motion, the court must consider all of the evidence and all of the inferences reasonably drawn therefrom, and must view such evidence and such inferences in the light most favorable to the opposing party." (<i>Aguilar</i>, supra, 25 Cal.4th at 843.) <u>Breach of Contract Against Defendant Azalea (3rd, 4th, and 5th COA)</u> "[T]he elements of a cause of action for breach of contract are [1] the existence of the contract, [2] plaintiff's performance or excuse for nonperformance, [3] defendant's breach, and [4] the resulting damages to the plaintiff." (<i>Oasis West Realty, LLC v. Goldman</i> (2011) 51 Cal.4th 811, 821, internal citation omitted.) Here, the undisputed material facts establish: [1] The existence of three written Receivable Sale Agreements, entered into by Plaintiff and Defendant Azalea, on or about December 6, 2024, March 7, 2025, and April 29, 2025, respectively (Smalbach Decl. at ¶¶ 4, 12, 20, Exhs. 1, 3, 5); [2] Plaintiff's performance under the agreements, including by wiring the money required under the agreement into Defendant Azalea's approved account (Smalbach Decl. at ¶¶ 7,

		15, 23); [3] Defendant Azalea’s breach of the Receivable Sale Agreements by failing to make the weekly remittance payments due thereunder, and by failing to pay the entire amount due despite Plaintiff’s demand (Smalbach Decl. at ¶¶ 9-10, 17-18, 25-26); [4] Plaintiff’s resulting damages, including: \$186,331.94 due under the December agreement; \$93,205.37 due under the March agreement; and, \$369,357.04 due under the April agreement (Smalbach Decl. at ¶¶ 11, 19, 27, Exhs. 2, 4, 6.) Based on the undisputed material facts, Plaintiff has met its initial burden of showing that it is entitled to judgment in its favor on the third, fourth, and fifth causes of action for breach of contract against Defendant Azalea. The burden shifts to Defendants to show that a triable issue of material fact exists. By failing to oppose the motion, Defendants have not met this burden. <u>Breach of Guaranty Against Defendant Azar (6th, 7th, and 8th COA)</u> “A lender is entitled to judgment on a breach of guaranty claim based upon undisputed evidence that (1) there is a valid guaranty, (2) the borrower has defaulted, and (3) the guarantor failed to perform under the guaranty.” (<i>Gray1 CPB, LLC v. Kolokotronis</i> (2011) 202 Cal.App.4th 480, 486, internal citation omitted.) Here, the undisputed material facts establish: [1] The existence of three personal guaranty agreements executed by Defendant Azar, in favor of Plaintiff, in connection with each of the subject Receivable Sale Agreements (Smalbach Decl. at ¶¶ 5, 13, 21, Exhs. 1, 3, 5); [2] The default of Defendant Azalea under the Receivable Sale Agreements. (Smalbach Decl. at ¶¶ 9-10, 17-18, 25-26); [3] Defendant Azar’s failure to perform under the accompanying guaranty agreements despite Plaintiff’s demand (Smalbach Decl. at ¶ 29); [4] Plaintiff’s resulting damages, including: \$186,331.94 due under the December agreement; \$93,205.37 due under the March agreement; and, \$369,357.04 due under the April agreement (Smalbach Decl. at ¶¶ 11, 19, 27, Exhs. 2, 4, 6.) Based on the undisputed material facts, Plaintiff has met its initial burden of showing that it is entitled to judgment in its favor on the fifth, sixth, and seventh causes of action for breach of guaranty against Defendant Azar. The burden shifts to Defendant to show that a triable issue of material fact exists. By failing to oppose the motion, Defendant has not met this burden. Additionally, in the alternative, the Court exercises its discretion to grant the motion because Plaintiff has met its initial prima facie showing, and Defendants did not submit an opposing separate statement. (Code Civ. Proc. § 437c, subd. (b)(3).) For the foregoing reasons, the motion for summary judgment is granted. Plaintiff shall submit a proposed judgment to the Court within 10 days and serve it upon all parties. The Case Management Conference scheduled for 07/27/26 is vacated. Plaintiff shall give notice of the ruling.
103	2024-01401794	Motion for Determination of Good Faith Settlement

Field vs.
Gunvalson

The motion of defendant Allianz Life Insurance Company of North America ("Allianz") for a good faith settlement determination under Code of Civil Procedure section 877.6 for its settlement with plaintiff Diane Field is granted.

Legal Standard

Code of Civil Procedure section 877.6 applies to a settlement between a plaintiff and an alleged tortfeasor or obligor under a contract in an action in which the tortfeasor is an alleged joint tortfeasor with another or the obligor is a co-obligor under the same contract with another. Cal. Code Civ. Proc. § 877.6(a)(1). Section 877.6 allows a settling defendant to obtain a determination that his settlement is in good faith, and thus to bar action for equitable contribution or equitable indemnity by the joint tortfeasor(s) or co-obligor(s). Code Civ. Proc. § 877.6(c).

The California Supreme Court in *Tech-Bilt v. Woodward-Clyde & Assoc.* (1985) 38 Cal.3d 488, set forth the factors to determine good faith. The factors are: (1) a rough approximation of plaintiffs' total recovery and the settlor's proportionate liability; (2) the amount paid in settlement; (3) the allocation of settlement proceeds among plaintiffs; (4) the recognition that a settlor should pay less in settlement than he would if he were found liable after a trial; (5) the financial conditions and insurance policy limits of settling defendants; (6) the existence of collusion, fraud or tortious conduct aimed to injure the interests of nonsettling defendants. *Tech-Bilt*, 38 Cal. 3d at 499-500. The settlement must be assessed based on the information available at the time of settlement. *Tech-Bilt, Inc. v. Woodward-Clyde & Assoc.*, 38 Cal.3d at 499.

Under the statute, the burden of proof is on the party opposing the good faith determination. Cal. Code Civ. Proc. § 877.6(d). Thus, where the nonsettling defendants do not oppose a motion for good faith settlement determination on the good faith issue, "a barebones motion which sets forth the ground of good faith, accompanied by a declaration which sets forth a brief background of the case is sufficient." *City of Grand Terrace v. Superior Court* (1987) 192 Cal. App. 3d 1251, 1261. In other words, only when the application is contested or motion for good faith determination is opposed need the court consider and weigh the *Tech-Bilt* standards. *Id.*

Discussion

Here, Allianz has provided no information as to the amount of damages claimed by Plaintiff or her likely recovery. Allianz has explained, however, that any damages suffered by Plaintiff were not the result of Allianz's actions. Plaintiff did not lose any money on, or because of, the Allianz products she purchased. To the extent she was unhappy with those products or felt they did not fit her needs, that has been resolved by the settlement in which she surrendered each of the annuities that she purchased from Allianz Life and has received the full surrender value of those Annuities. [Geller Decl. (ROA #200), ¶ 9 and Ex. A.]

Plaintiff has now received everything that she paid into the annuities, plus the Annuities' earnings, less the amount of the withdrawals that she had taken previously.

There is no evidence of collusion regarding the settlement and no party has opposed the motion for good faith settlement determination.

Accordingly, the motion is granted.

Moving party is ordered to give notice.

104	2025-01468006 Jetset Group Inc. vs. Firm Foundation Aviation, LLC	Motion for Attorney Fees Plaintiff Jetset Group, Inc.’s motion for attorney fees is denied. Plaintiff submitted its request for attorney fees with its request for a default judgment. The Court already ruled on Plaintiff’s request, awarding Plaintiff a total of \$51,539.13, comprised of damages and costs. The Court did not award Plaintiff its attorney fees. (ROA 45.) Plaintiff does not move for the Court to reconsider its decision pursuant to Code Civ. Proc., § 1008. Therefore, as there are no grounds to now award Plaintiff its attorney fees, the motion is denied.
106	2025-01469578 Ghent vs. General Motors LLC	Motion for Leave to File Amended Complaint Plaintiff Heather Ghent’s Motion for leave to file a first amended complaint against Defendant General Motors LLC is granted. Plaintiff is ordered to file and serve the First Amended Complaint within 10 days. Plaintiff is also ordered to give notice.
107	2022-01291454 T. vs. Mcfarland	Motion to Strike or Tax Costs Plaintiff’s motion to tax costs claimed by Defendant Cynthia Macfarland is granted in part and denied in part. The right to recover costs of suit is determined entirely by statute. (Code Civ. Proc., § 1032 et seq.) Unless otherwise expressly prohibited by statute, a prevailing party is entitled to recover costs as a matter of right. (Code Civ. Proc., § 1032, subd. (b).) Code of Civil Procedure section 1033.5, subdivision (a) specifies cost items that are allowable, including filing and motion fees, deposition costs, and court reporter fees. (Code Civ. Proc., § 1033.5, subd. (a)(3).) Allowable costs “shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation” and “reasonable in amount.” (Code Civ. Proc., § 1033.5, subd. (c).) If the items on their face appear to be proper charges, the verified memorandum of costs is prima facie evidence of their propriety, and the burden is on the party seeking to tax costs to show they were not reasonable or necessary. (<i>Ladas v. California State Auto. Assn.</i> (1993) 19 Cal.App.4th 761,774-776; <i>Jones v. Dumrichob</i> (1998) 63 Cal.App.4th 1258, 1266 [mere statements in points and authorities and declaration of counsel insufficient to rebut prima facie showing]; see <i>Wagner Farms, Inc. v. Modesto Irrigation Dist.</i> (2006) 145 Cal.App.4th 765, 777-778 [prevailing defendant properly awarded its photocopying costs which were supported by invoice from copy company, when plaintiffs failed to present any evidence showing that copying could have been done for less]. On the other hand, items that are properly objected to are put in issue, and the burden of proof is on the party claiming them as costs. (<i>Ladas v. California State Auto. Assn., supra</i>, 19 Cal.App.4th at pp. 774-776.) <u>Expert Witness Fees</u>

Defendant claims \$111,692.86 in expert witness fees.

Defendant previously served a Code of Civil Procedure Section 998 offer for \$100,000 on December 22, 2023, which was not accepted.

After trial in December 2025, the jury found in favor of Defendant.

Code Civ. Proc., § 998(c)(1) states (emphasis added):

If an offer made by a defendant is not accepted and the plaintiff fails to obtain a more favorable judgment or award, the plaintiff shall not recover their postoffer costs and shall pay the defendant's costs from the time of the offer. In addition, in any action or proceeding other than an eminent domain action, the court or arbitrator, in its discretion, may require the plaintiff to pay a reasonable sum to cover postoffer costs of the services of expert witnesses, who are not regular employees of any party, actually incurred and reasonably necessary in either, or both, preparation for trial or arbitration, or during trial or arbitration, of the case by the defendant.

Contrary to Plaintiff's argument, the Court finds that Defendant's 998 offer was valid. Plaintiff contends it required Plaintiff's release of all claims, which pursuant to *Ignacio v. Caracciolo* (2016) 2 Cal.App.5th 81, 86–87 is not permitted, but this is not accurate. The relevant language of the release is limited to claims arising "because of the accident..." (Barnett Decl., Ex. A.) Furthermore, the offer stated that it is "subject to defendant being provided with a Release of All Claims related to the pending action." (Barnett Decl., Ex. A [emphasis added].)

The Court finds based on the evidence that Defendant's expert fees were properly incurred post-offer, and that such were reasonable and necessary to the litigation. In addition, Defendant's offer of \$100,000 was a reasonable and good faith offer in light of Plaintiff's responses to written discovery noting minimal medical damages and the ultimate finding of the jury in favor of Defendant. Therefore, the Court awards Defendant her requested expert witness fees.

Trial technology, Court Runner and "Other" Costs

Defendant claims \$13,729.94 in other costs, including trial technology services, court runner fees, and medical record printing.

The Court agrees with Plaintiff here and does not find that any of these costs were reasonably necessary to the litigation. None are specifically identified as allowable costs under Code Civ. Proc., § 1033.5(a). Furthermore, Code Civ. Proc., § 1033.5(c)(2) states that "[a]llowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation." (Emphasis added.)

Accordingly, the Court disallows \$13,729.94 of Defendant's costs.

Other Cost Items

Plaintiff additionally challenges Defendant's claimed deposition costs, exhibit, copying and court reporter costs, and filing, service and motion fees.

		"[T]he burden is on the party seeking to tax costs to show they were not reasonable or necessary." (612 South LLC v. Laconic Limited Partnership (2010) 184 Cal.App.4th 1270, 1285 [citing <i>Nelson v. Anderson</i> (1999) 72 Cal.App.4th 111, 131].) Plaintiff fails to meet his burden as to these costs. He does not point to any specific cost items within the documents that Defendant submitted that are improperly claimed, or otherwise demonstrate that such were not reasonable or necessary to the litigation. Based on the foregoing, the Court taxes a total of \$13,729.94 in costs and awards Defendant \$239,303.34. Defendant is ordered to give notice of the ruling.
109	2026-01545042 Jeff Lewis Law, APC vs. The Moad Group, Inc.	Application for Right to Attach Order/Writ of Attachment Plaintiff Jeff Lewis Law, APC's application for a writ of attachment against Defendant Ivan Moad in the amount of \$173,400.00 is denied. Plaintiff seeks to attach "all nonexempt attachable property of defendant Ivan Moad subject to attachment under Code of Civil Procedure section 487.010." Code Civ. Proc., § 484.020 requires that the application include: (e) A description of the property to be attached under the writ of attachment and a statement that the plaintiff is informed and believes that such property is subject to attachment....Where the defendant is a natural person, the description of the property shall be reasonably adequate to permit the defendant to identify the specific property sought to be attached. Plaintiff's description of the property is incredibly broad, contrary to § 484.020. (See <i>Bank of America v. Salinas Nissan, Inc.</i> (1989) 207 Cal.App.3d 260, 267–268.) Therefore, because Plaintiff failed to include an adequate description of the property sought to be attached pursuant to Code Civ. Proc., § 484.020, the application is denied. Defendant Ivan Moad shall give notice.
110	2025-01492685 Molina vs. Kia America, Inc	1. Demurrer to Amended Complaint 2. Motion to Strike Portions of Complaint Defendant Kia America, Inc.'s demurrer to the fifth cause of action for fraudulent inducement in Plaintiffs Melinda and Michael Molina's first amended complaint ("FAC") is sustained without leave to amend. The motion to strike is granted without leave to amend as to the prayer for punitive damages in the FAC; the motion is otherwise moot. Facts Defendant Kia demurs to the fraudulent inducement claim contained within Plaintiffs' first amended complaint. [ROA #61.] Defendant expressly seeks to have the demurrer sustained without leave to amend, arguing that Plaintiffs have shown they cannot cure the defects in their allegations. [Demurrer MPA at 7.] Plaintiffs have filed a statement that they do not oppose the demurrer. [ROA #69.]

		Defendant has moved to strike both the fraudulent inducement claim and the prayer for punitive damages. [ROA #65.] Plaintiffs have not filed any response or opposition. Demurrer Given Plaintiffs’ express non-opposition, the demurrer to the fifth cause of action in Plaintiffs’ FAC is sustained without leave to amend. Plaintiffs have made no showing that they can cure any defects in the complaint. “If there is a reasonable possibility that the defect in a complaint can be cured by amendment, it is an abuse of discretion to sustain a demurrer without leave to amend. . . . The burden is on the plaintiff, however, to demonstrate the manner in which the complaint might be amended.” <i>Hendy v. Losse</i> (1991) 54 Cal.3d 723, 742 (citations omitted). Motion to Strike A court may strike out any irrelevant, false, or improper matter inserted in any pleading or strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule or an order of the court. Code Civ. Proc. § 436. “Irrelevant” matters include: allegations not essential to the claim, allegations neither pertinent to nor supported by an otherwise sufficient claim or a demand for judgment requesting relief not support by the allegations of the complaint. Code Civ. Proc. § 431.10(b). A motion to strike can also strike legal conclusions. <i>Weil & Brown</i>, Cal. Prac. Guide, <i>Civil Proc. before Trial</i>, ¶ 7:179 (2010). Conclusory allegations are permitted, however, if they are supported by other factual allegations in the complaint. <i>Perkins v. Superior Court</i> (1981) 117 Cal.App.3d 1, 6. <i>Fraudulent Inducement Cause of Action</i> Given the demurrer ruling, the motion to strike is moot as to the fraudulent inducement cause of action. <i>Prayer for Punitive Damages</i> The motion is granted as to the prayer for punitive damages. At the pleading stage, to support a claim for punitive damages the complaint must allege facts supporting circumstances of oppression, fraud, or malice. <i>See Grieves v. Superior Court</i> (1984) 157 Cal.App.3d 159, 166. In the absence of a viable fraud claim as a result of the demurrer ruling, Plaintiffs have not alleged a basis for punitive damages. Defendant is ordered to give notice.
111	2025-01467987 Yang vs. Ha	1. Demurrer to Amended Complaint 2. Case Management Conference Defendants Thuy Ha and Open Plan Construction Inc.’s demurrer to Plaintiffs Scott Yang and Nina Tran’s second amended complaint is overruled. <u>2nd COA for Breach of Contract</u> “A cause of action for breach of contract requires [1] pleading of a contract, [2] plaintiff’s performance or excuse for failure to perform, [3] defendant’s breach, and [4] damage to plaintiff resulting therefrom.” (<i>Munoz v. MacMillan</i> (2011) 195 Cal.App.4th 648, 655.) A written contract may be pleaded either by its terms—set out verbatim in the complaint or a copy of the contract attached to the complaint and incorporated therein by reference—or by its legal effect. (<i>Holcomb v. Wells Fargo Bank, NA</i> (2007) 155 Cal.App.4th 490, 501.)

Here, Plaintiffs allege the existence of a written agreement “between THUY HA on behalf of herself and on behalf of OPEN PLAN CONSTRUCTION INC., on the one hand, and NINA TRAN on the other hand.” (SAC at ¶ 22.) Defendants specially demur to the breach of contract claim on the grounds that, “Plaintiff SCOTT A. YANG is not a party to the contract.” (ROA 49 [Dem. at p. 4].) This argument is not persuasive, because the SAC expressly states (on p. 6) that the breach of contract claim is being asserted by Plaintiff Tran, **only**. Accordingly, the demurrer is overruled.

3rd COA for Negligent Misrepresentation by Deceit and 4th COA for Intentional Misrepresentation by Deceit

Deceit is a: “suggestion, as a fact, of that which is not true, by one who does not believe it to be true”; an “assertion, as a fact, of that which is not true, by one who has no reasonable ground for believing it to be true”; the “suppression of a fact, by one who is bound to disclose it, or who gives information of other facts which are likely to mislead for want of communication of that fact”; or, a “promise, made without any intention of performing it.” (Civ. Code, § 1710.) The element of misrepresentation for a deceit claim “is satisfied by a failure to fully disclose material facts.” (*Berry v. Frazier* (2023) 90 Cal.App.5th 1258, 1269.)

“Negligent misrepresentation is a separate and distinct tort, a species of the tort of deceit.” (*Bily v. Arthur Young & Co.* (1992) 3 Cal.4th 370, 407.) “The elements of negligent misrepresentation are (1) a misrepresentation of a past or existing material fact, (2) made without reasonable ground for believing it to be true, (3) made with the intent to induce another’s reliance on the fact misrepresented, (4) justifiable reliance on the misrepresentation, and (5) resulting damage.” (*Ragland v. U.S. Bank National Assn.* (2012) 209 Cal.App.4th 182, 196.) Like a claim for fraud, each element of negligent misrepresentation “must be factually and specifically alleged.” (*Cadlo v. Owens-Illinois, Inc.* (2004) 125 Cal.App.4th 513, 519 [“The policy of liberal construction of pleadings is not generally invoked to sustain a misrepresentation pleading defective in any material respect”].)

As they argued in their prior demurrer, Defendants claim the misrepresentation claims fail because Plaintiffs did not plead the claims with the requisite particularity, and because Plaintiff Yang “was not involved party.” The former is not persuasive, because it is contrary to the allegations in the SAC, wherein Plaintiffs allege that the misrepresentations were made to both plaintiffs. (See SAC at ¶¶ 28, 32.) A demurrer “admit[s] all the properly pleaded material facts” and “even the most improbable alleged facts” are accepted as true. (*Nolte v. Cedars-Sinai Medical Center* (2015) 236 Cal.App.4th 1401, 1406.) The latter argument is not persuasive, either, because Plaintiffs have adequately alleged the circumstances surrounding the alleged deceit. Plaintiffs have specifically alleged: [1] misrepresentations or concealments of material facts about being licensed contractors; [2] made by Defendant Ha, individually, and on behalf of Open Plan Construction, Inc.; [3] to Plaintiffs; [4] and, that the misrepresentations were made from 11/18/24 through 11/27/24 (SAC at ¶¶ 9, 28, 32).

Lastly, Defendants’ argument that the misrepresentation claims are an “improper attempt to recast a breach of contract cause of action as a tort claim,” is without merit. (Dem. at p. 6.) The economic loss doctrine is not applicable, here, because Plaintiffs are not alleging mere non-performance or negligent performance of the construction contract. Rather, Plaintiffs are alleging they were deceived into hiring Defendants (i.e., fraudulently induced) through Defendants’ concealment of the fact that they were not licensed contractors. As such, the economic loss rule does not bar their misrepresentation claims. (See *Robinson Helicopter Co., Inc. v. Dana Corp.* (2004) 34

		Cal.4th 979, 992.) Accordingly, the Demurrer is overruled in its entirety. Defendants shall file and serve their answer to the SAC within 15 days. The case management conference is continued to November 9, 2026 at 10:00 a.m. in Department C27. Plaintiffs are ordered to give notice of the ruling.
112	2025-01452129 NNN Capital Fund I, LLC vs. Mikles	1. Order to Show Cause 2. Order to Show Cause 3. Order to Show Cause re: Terminating Sanctions No Tentative issued.
113	2025-01491936 SweeterHR vs. Schoeman	1. Motion for Leave to File Cross Complaint 2. Order to Show Cause re: Failure to Appear 3. Order to Show Cause re: Sanctions for Failure to File Case Management Statement 4. Case Management Conference Defendants Kiffany Schoeman and Tamily HR Solutions LLC's Motion for leave to file the proposed Cross-Complaint against Plaintiff SweeterHR and Sasha Elkins is granted. Defendants are ordered to file the proposed pleading within 10 days and serve it pursuant to the Code of Civil Procedure. If Plaintiff's counsel appears at the hearing, the OSCs will be discharged. Failure to appear at the hearing on these matters will result in the Court moving forward with the hearing on the OSCs. The case management conference is continued to November 16, 2026 at 10:00 a.m. Moving party is ordered to give notice.